

CITY OF MANCHESTER, NEW HAMPSHIRE
ZONING BOARD OF ADJUSTMENT

In re Case No. ZBA2026-063 — 26 Titus Avenue (Tax Map 554, Lot 17C)

R-1B Zoning District, Ward 9

MOTION FOR REHEARING

Pursuant to RSA 677:2

NOW COME Nickolas J. Levasseur and Alison Famisan-Levasseur of 30 Mystic Street, Manchester, New Hampshire 03103 [and the abutters identified in Exhibit A,] and respectfully move that this Board grant a rehearing of its decision of September 10, 2026 granting the variances requested in the above-captioned case. In support of this motion, and in satisfaction of RSA 677:2, the Movants set forth below every ground upon which it is claimed that the decision is unlawful or unreasonable.

I. STANDING AND TIMELINESS

1. The Movants own and reside at 30 Mystic Street, Manchester. Their property [abuts / lies within 200 feet of] the subject parcel and they are abutters within the meaning of RSA 672:3. They appeared and gave testimony in opposition at the public hearing on September 10, 2026. They are therefore persons entitled to apply for a rehearing under RSA 677:2, both as abutters as defined by RSA 672:3 and as parties to the action and proceedings.
2. The Board rendered its decision on September 10, 2026. This motion is filed within thirty days of that decision and is therefore timely under RSA 677:2. [As of the date of filing the City has published neither minutes nor a notice of decision for the September 10, 2026 meeting, and the Movants have not been served with any written decision. / Conform to the facts on the filing date; see paragraph 43.]
3. The Movants set forth each ground fully and separately below, mindful that under RSA 677:3, I, no ground not set forth in this motion may later be urged upon appeal.

II. THE DECISION COMPLAINED OF

4. The applicant, T & L 2018, LLC, by its agent Doug MacGuire, P.E., of The Dubai Group, Inc., sought relief to construct two townhouse buildings containing thirteen multifamily dwelling units on a lot having 49,484 square feet of buildable area where 78,000 square feet is required for the use proposed.
5. On September 10, 2026 the Board granted relief from six sections of the Land Use Code: §4.3-A.1.C (Multifamily Dwellings); §8.1.2 (Planned Development Lot Area); §5.3.1.E (Townhouse Building Type — Districts Permitted); §5.3.1.E.5.B (Maximum Height in Stories); §5.3.1.E.5.C (Maximum Height in Feet); and §8.7.2.F.2 (Parking Location for Planned Developments). The vote was four to one, Member Carnevale dissenting. No condition was attached to the grant.

III. THE GOVERNING STANDARD, AND THE DECISION'S STATED BASIS

6. A variance may be granted only upon affirmative findings on all five criteria of RSA 674:33, I(a)(2)(A) through (E). The burden of proof on every criterion rests upon the applicant, and upon the applicant alone. *Harrington v. Town of Warner*, 152 N.H. 74 (2005). A failure of proof on any one criterion requires denial.
7. It follows from that allocation that a criterion the applicant has not supported cannot be found satisfied on the strength of a statement made from the bench. Whatever a member may properly draw upon in deliberating, the burden the statute places on the applicant is not discharged by the body deciding whether the applicant has carried it.
8. "Unnecessary hardship" under RSA 674:33, I(b) requires special conditions of *the property* that distinguish it from other properties in the area. Conditions personal to the owner, and the owner's preferred or more profitable use, are not special conditions of the land.

Bacon v. Town of Enfield, 150 N.H. 468 (2004); *Olszak v. Town of New Hampton*, 139 N.H. 723 (1995).

The decision's stated basis

9. At the close of the hearing the Chair asked Vice Chair St. Pierre to state the findings of fact. He did so, speaking for approximately two minutes, pausing only to decline a member's request that he repeat a finding, and then immediately moved that relief be granted from all six sections. The motion was seconded and carried four to one.

10. No other member stated findings of fact. No other member discussed the findings recited. Partway through the recitation a member interrupted to say: "Craig, could you please repeat that — you're going really fast." The finding was not repeated. The Vice Chair answered to the effect that he would come back to the member later, continued to the end of the recitation, and moved the relief approximately seventy seconds after the request was made. The vote was taken about thirty seconds after that. The findings were never repeated, never read back, never reduced to writing, and never discussed.

11. Those statements are therefore not stray commentary from the bench. They are the findings of fact the Board adopted, by the same vote that granted the relief, and they are the only statement of reasons the record contains. If the findings are unsupported by the record, or are contradicted by it, the decision they were given to justify cannot stand.

12. Nor can the defects in those findings be treated as immaterial upon the footing that four members voted to grant. A vote of four to one would answer the Movants if the record showed four members weighing these findings independently and arriving at the same place. It shows something else. It shows one recitation, delivered quickly enough that a member of the Board asked for a finding to be repeated and did not get it, followed within about a minute and a half by the motion and the vote. The Movants do not say what any member was thinking, and they do not need to. They say only what the record shows: that there is but one statement of reasons in this case, that it is the one the Board adopted, and that no member who voted upon it had it repeated, in writing, or in discussion before voting.

IV. GROUNDS FOR REHEARING

A. Grounds addressed to the criteria of RSA 674:33, I(a)(2).

Ground 1. The applicant offered no evidence whatever on RSA 674:33, I(a)(2)(D), and the only evidence supporting that finding was supplied from the bench by the member who recited it.

13. Member Carnevale asked the applicant directly whether it had obtained a broker price opinion to support its assertion that surrounding property values would not be diminished. The applicant's engineer answered: "so no, we did not," and offered to obtain one if the Board wished. The Board did not ask him to do so.

14. The applicant produced no appraisal, no market study, no comparable sale, and no opinion of any person qualified to give one. Its entire written submission on this criterion is that there is "ample buffering" and that the project "would not negatively affect surrounding existing properties." The buffer relied upon is approximately 130 to 135 feet of woods lying upon the rear yards of the Mystic Street owners, land the applicant does not own and which its own engineer conceded those owners "have the right to develop... or expand... or cut."

15. Approximately eight minutes after that concession, and in the course of reciting the findings of fact, Vice Chair St. Pierre stated:

"Also, I am a real estate broker, and I'm not aware of any circumstance where a development of this nature in Manchester has diminished a property around it. I've never seen a report or evidence of that. In general, reasonably well thought out development increases values."

16. This was not evidence. Article XIV of this Board's By-Laws provides that at a public hearing an "[o]ath [is] taken by those wishing to give testimony," and the Chair administered that oath at the opening of the September 10 meeting. The statement was not given under oath, because it was not given as testimony at all.

17. The Movants do not suggest that a member must set aside what he knows of the City. A zoning board is a lay body drawn from the community in part because its members know the community, and a member who observes that a street carries no parking, or that a slope drains poorly, tells the Board something any person in the room can confirm or contradict on the spot. Local knowledge of that kind equips a board to test the case put before it. It is a capacity every member has and every abutter may answer.

18. The statement at issue is of another order. It described no condition of this locality. It announced a general conclusion about the effect of development upon market values, resting upon a professional credential the speaker holds and the other members do not, and upon transactions and experience found nowhere in the file. Nothing in it could be confirmed by driving to Titus Avenue. That is no accident of phrasing: RSA 674:33, I(a)(2)(D) asks whether the values of surrounding properties will be diminished, which is a prediction about a market and not an observation about a place. Evidence upon that criterion is necessarily opinion evidence, and opinion evidence is precisely the kind that must be open to examination.

19. The distinction is therefore not one of status but of function. Knowledge of the area helps a board weigh a case; expert opinion from the bench makes one. The practical test is this. Had the applicant filed this same statement over a broker's signature, it would have been evidence upon criterion (D), and the Movants could have met it — with an appraisal, with cross-examination, with an inquiry into which comparable developments the opinion rested upon. Offered instead from the bench, it carried the same weight and admitted of no answer. It came twenty-five minutes after the Chair had asked for the last time whether anyone wished to speak in opposition, in the course of reciting the findings, and less than a minute before the motion to grant. The burden upon this criterion was the applicant's; the applicant had just told the Board it had nothing; and what the Board treated as discharging that burden came from a member of the Board, at a moment when no one could reply to it.

20. The defect is not merely that opinion took the place of evidence. A member furnished the very proof the applicant had conceded, minutes earlier, that it did not possess; he then recited it as a finding of fact; he then moved to grant the relief; and he then voted upon the sufficiency of what he had himself supplied. The applicant's burden under *Harrington* was not carried. It was relieved.

21. That this was material is established by the record itself. The dissenting member had put the question of property-value evidence to the applicant directly and received the answer that none existed. The criterion was live, it was contested, and the only material before the Board upon it came from a member of the Board.

Ground 2. The findings on the public interest and the spirit of the ordinance were measured against the stated intent of a district in which this parcel does not lie, and no finding was made against the intent of the district in which it does, RSA 674:33, I(a)(2)(A) and (B).

22. The statement of the district's intent that reached the Board was not the one the Land Use Code contains. Table 3.3-A states the intent of the R-1B district as "to maintain higher-density neighborhoods of single-family, detached dwellings located in outlying areas of the City." The applicant's written memorandum told the Board, under the heading "The spirit of the Ordinance is observed because," that "[t]he spirit of the zoning Ordinance in the R-1B zone is to provide higher density residential neighborhoods," and stated the same proposition again in its hardship section. That rendering substitutes "provide" for "maintain" and omits "of single-family, detached dwellings," which are the words that decide whether a thirteen-unit townhouse development observes the district's intent. No accurate statement of the R-1B intent appears anywhere in the record, and the Board was not directed to one.

23. The findings recited and adopted place the parcel in "a transitional area." R-1B carries no such designation. Table 3.3-A assigns the transitional role to the R-2 district, which "forms a loose band around the more densely developed areas of the City, transitioning between mixed-use centers and the lower densities of the single-family districts." The spirit of the ordinance was therefore weighed against the stated purpose of a district other than the one that governs this parcel.

24. The defect is an absent finding rather than a disputed one. RSA 674:33, I(a)(2)(A) and (B) require affirmative findings that the variance is not contrary to the public interest and that the spirit of the ordinance is observed, and the spirit of an ordinance is measured by that ordinance's own statement of intent for the district in which the parcel lies. The record contains no finding identifying the intent of R-1B, and none reconciling that intent with the relief granted. Upon this record the Board could not have made such a finding, the only statement of R-1B's intent before it having been the applicant's altered one.

Ground 3. Substantial justice was not weighed, RSA 674:33, I(a)(2)(C).

25. The applicant's entire written showing on this criterion is that "[t]he benefits to the applicant in constructing residential which is far more conducive to the property provides substantial justice." The governing question is whether any loss to the individual is outweighed by a gain to the general public. The applicant weighed only its own benefit, which is the one interest this criterion does not measure. Nor is the loss the applicant does have of the kind this criterion weighs. On its own plan the parcel yields five conforming lots, so what denial costs the applicant is the difference between a conforming use and a more profitable one. That is not a loss to the individual that the public gains nothing by preventing; it is the ordinance applying as written. *Olszak*, supra.

Ground 4. No special condition of the property was identified, and the hardship claim is contradicted by the applicant's own sealed exhibit.

26. The applicant's written memorandum states that the parcel "can support five (5) single family home lots meeting the underlying zoning." Its By-Right Subdivision Plan, submitted with the application, depicts five conforming lots, each having more than the 6,000 square feet of buildable area the ordinance requires.

27. At the hearing the applicant told the Board the opposite. Its engineer posed a hypothetical of his own construction: "If you could have nine single family homes here by right and you can't get more than one or two, is that a reasonable use of the property?" Its principal stated: "the hardship is the steep slopes. We can't essentially build the houses."

28. No drawing, grading analysis, soils report, or cost estimate was offered in support of the oral claim. Minutes earlier the same engineer had conceded that the arithmetic runs the other way: "this lot would support more than what we're showing here, just physically based on buildable area divided by 6,000."

29. The Board was asked to disbelieve the applicant's own stamped plan upon the applicant's unsupported say-so, and did so. A finding of unnecessary hardship that rests upon an assertion the applicant's own submitted exhibit refutes is unreasonable.

30. Further, the principal physical feature identified — slope — is not a special condition distinguishing this parcel. The City's Zoning Review deducted 10,922 square feet of slope from 60,406 square feet gross, leaving 49,484 square feet of buildable area. That is the ordinance operating as written. It leaves more than eight times the 6,000 square feet the ordinance requires per planned-development unit. The applicant's own By-Right Subdivision Plan was drawn upon this same land after this same deduction and still shows five conforming lots. A deduction that leaves a parcel abundantly buildable, and that the applicant's own engineer worked around successfully on paper, is not a hardship arising from special conditions of the land within the meaning of RSA 674:33, I(b). *Bacon*, supra.

31. What the applicant in truth advanced was that a conforming five-lot subdivision would be less profitable or less convenient than thirteen townhouse units. That is not unnecessary hardship. *Olszak*, supra. The applicant acquired the parcel as vacant land at public auction in 2024, a circumstance the Board may weigh. *Hill v. Town of Chester*, 146 N.H. 291 (2001).

B. Errors of fact in the findings adopted.

Ground 5. The findings adopted by the Board are contradicted by the testimony given at the same hearing, or rest upon matter not in the record.

32. The findings recited and adopted include the following. Each is set against what the record before the Board actually contained.

33. **On-street parking.** The findings state that the plan "reduces the need for curb cuts on Calef Road and preserves existing on street parking." Two witnesses had told the Board there is no on-street parking on Calef Road to preserve. Kate Marquis: "Anything south of that, you'll notice if you drive there, there's big no parking signs." Jennifer Allard: "No one can park on Calef. You're not allowed to park on Calef."

34. **The enforced buffer.** The findings rely upon an "enforced buffer" and upon "additional buffers... beyond what the plan development requires in itself." No landscape plan and no buffer design was submitted with the application. The City's Zoning

Review records a Type 2 buffer as “Can comply,” which states a possibility and not a proposal. An abutter had asked the Board minutes earlier: “There’s no plan that shows how far back he’s going to go. Is he going to go right up to that 25 feet and take all the trees there?”

35. **Traffic safety.** The Vice Chair stated that “by removing curb cuts into Calef, I think we improve safety tremendously,” and found the entrance to be “off of Titus Avenue, which is in general safer to turn on to than the busier Calef.” No traffic count, sight-distance analysis, crash history, or professional opinion of any kind appears in the file. The comparison between the two streets was made by no witness.

36. These are not incidental remarks. They span three of the five statutory criteria, they constitute the whole of the Board’s stated reasoning, and the decision was voted immediately upon their recitation without any other member offering findings of his or her own.

C. Errors of process.

Ground 6. The Board weighed the application against tests the statute does not contain, and never reached the test it does, RSA 674:33, I(a)(2) and I(b).

37. In reciting the findings the Vice Chair stated, “my overall thought on this is that I do believe this is the best plan for this lot.” He framed the weighing itself as a choice between the application and the conforming five-lot subdivision shown on the applicant’s own plan: “so when I weigh these, I look at, if they’re allowed to do or say they did do those five houses, is that more in benefit of safety? Is it more in benefit of the neighbors, of the spirit?” No member offered a different frame, and the vote was taken upon those findings.

38. That the frame was the wrong one was put to the Board before it voted, by a member of the Board. Member Carnevale told the applicant: “I’m having a tough time seeing how an actual hardship exists that would override... this is not an area that’s zoned for townhouses. In essence it’s striking me as the argument is it would be good if it were zoned for townhouses... But that’s not what it’s zoned for.” The objection was not answered and was not discussed. The findings that followed adopted the comparative frame notwithstanding it, and the member who stated the objection cast the dissenting vote.

39. Neither question appears in the statute. RSA 674:33, I(a)(2) enumerates five criteria, and whether an application is the best available plan for a lot is not among them. Nor is the comparative question. Unnecessary hardship under RSA 674:33, I(b) asks, in both of its branches, whether special conditions of the property that distinguish it from other properties in the area make conformance unreasonable: under I(b)(1), whether “no fair and substantial relationship exists between the general public purposes of the ordinance provision and the specific application of that provision to the property” and whether “the proposed use is a reasonable one”; and, if that is not established, under I(b)(2), whether “the property cannot be reasonably used in strict conformance with the ordinance.” A board that has decided it prefers one lawful development to another has answered neither question.

40. The substitution was not harmless. Measured against the five-lot subdivision, a proposal may appear to reduce curb cuts, add buffers, or concentrate development away from a slope, and the findings recite each of those comparisons. Measured against the statute, the same record shows a parcel the applicant’s own stamped plan proves can be used in conformance with the ordinance. The comparative frame permitted the Board to find hardship without ever asking whether conformance was unreasonable, which is the only question I(b) puts to it. That is an error of law, and it is independent of the sufficiency of the evidence addressed in the grounds above.

Ground 7. Relief was granted from §8.1.2 without any evidence or finding addressing that standard.

41. Section 8.1.2 of the Land Use Code governs lot area in a planned development, and was among the sections from which relief was granted. The applicant offered no evidence directed to that standard, and the Board adopted no finding that mentions it. Nothing in the record states what the standard requires on this parcel, by how much the proposal departs from it, or why a departure of that size satisfies any of the five criteria.

42. The departure is not marginal. The City's Zoning Review states the requirement for this proposal as 78,000 square feet of lot area for thirteen dwelling units, which is 6,000 square feet per unit, and states the lot has 49,484 square feet of buildable area. At the standard the City itself applied, this lot supports eight units. Thirteen were granted.

43. What the applicant did offer on density was directed to the standards of the R-M district, under which it asserted seventeen units would be permitted, and to the heights allowed for townhouses in districts where townhouses are permitted. This parcel lies in neither. The Board's variance power is not in question. RSA 674:33, I(a)(2) authorizes a variance from the terms of the ordinance, and RSA 674:33, I(b)(3) applies the same definition of unnecessary hardship whether the provision from which relief is sought is "a restriction on use, a dimensional or other limitation on a permitted use, or any other requirement of the ordinance." What the Board cannot do is substitute another district's standards for those of the district in which the parcel lies. That is reclassification, and under RSA 675 it is reserved to the local legislative body, in Manchester the Board of Mayor and Aldermen. Evidence of what the R-M district would permit is therefore not evidence upon any of the five criteria as applied to this parcel.

Ground 8. The relief granted was unconditional, while the findings supporting it rest upon mitigation the decision does not require.

44. The motion upon which the Board voted was to "grant relief from §4.3-A.1.C, §8.1.2, §5.3.1.E, §5.3.1.E.5.B, §5.3.1.E.5.C and §8.7.2.F.2, noting that we've removed the three counts that the applicant's corrected." It was seconded and carried four to one. No condition of any kind was attached to the relief.

45. The findings recited in support of that motion depend upon mitigation throughout. They recite "additional buffers... beyond what the plan development requires in itself," and the Vice Chair had stated that "some of the primary concerns that we hear over and over are addressed by the enforced buffer in a plan development such as this" and that "a lot of the other problems are addressed in the plan review process." Nothing in the decision requires any of it. No landscape plan was submitted, no buffer dimension was fixed, and no condition obliges the applicant to provide, maintain, or refrain from removing a buffer of any depth. Nor could a condition upon this applicant have secured the buffer principally relied upon, the 130 to 135 feet of woods lying upon the Mystic Street owners' land, which the applicant's own engineer conceded those owners "have the right to develop... or expand... or cut."

46. This is distinct from the objection stated in Ground 5. There the point is that no evidence in the record supported the buffer finding. Here the point is that even if the finding be taken as made, the relief granted secures nothing that the finding assumes. The Board was not without the means. Article XIII of its own By-Laws provides that upon a variance it "may impose conditions or stipulations that must be adhered to by the present and subsequent owner(s)," and RSA 676:3, I requires a written decision approving an application with conditions to describe them in detail. Here there are none to describe. Deferral of concerns to "the plan review process" does not answer this. The findings did not rest upon whatever buffer the Planning Board might later require under its site plan regulations. They rested expressly upon buffers "beyond what the plan development requires in itself," which by the finding's own terms are buffers that nothing requires. The criteria of RSA 674:33, I(a)(2) had to be satisfied upon the record before this Board when it voted, and not upon the prospect of later action by another body which this decision does not compel.

D. The written decision and the minutes.

Ground 9. No written decision containing specific written findings of fact has been issued, RSA 676:3, I and II.

47. RSA 676:3, I requires a local land use board to issue a final written decision and provides that the decision "shall include specific written findings of fact that support the decision." RSA 676:3, II requires that the minutes of the meeting and the written decision be placed on file and made available for public inspection within five business days of the vote. Article X of this Board's own By-Laws states the same requirement: "Notice of the Board's Decisions will be made available for public inspection within five days. (RSA 676:3)."

48. [As of the date of this filing, the City has published no minutes of the September 10, 2026 meeting and has issued no written decision in this case, and more than five business days have elapsed since the vote. / Confirm the status of the minutes and written decision on the date of filing and conform this paragraph to it.] The Movants have requested both under RSA 91-A.

49. The consequence is not merely one of delay. The only findings of fact in existence are those recited orally by one member immediately before the vote, and it is those findings the grounds above address. Until a written decision issues, neither the Movants nor this Board can know whether the findings the Board is asked to reconsider are the findings the Board will ultimately adopt. RSA 677:2 provides for this circumstance. Where the moving party shows that the minutes and written decision were not filed within five business days after the vote pursuant to RSA 676:3, II, that party “shall have the right to amend the motion for rehearing, including the grounds therefor, within 30 days after the date on which the written decision was actually filed.” The Movants make that showing here and expressly reserve that right.

E. Ground preserved under RSA 677:3, I.

Ground 10. Preserved: the Board applied a different standard to comparable applications heard the same evening.

50. The Movants state this ground to preserve it under RSA 677:3, I, and do not urge it as the principal basis for rehearing.

51. In Case No. ZBA2026-078 (26 Sullivan Street), heard the same evening, the Board declined to vote upon requested variances because an elevation on the applicant’s plan set was mislabeled, a member stating that he was “not comfortable voting on anything that’s been represented here on paper” and “not comfortable... granting variances on something that’s incomplete.” The case was continued. In the present case the applicant’s oral hardship claim was contradicted by its own sealed subdivision plan, and no continuance was sought or granted.

52. In Case No. ZBA2026-080 (374 Thornton Street), also heard the same evening, the same slope provision reduced a parcel to 1,812 square feet of buildable area out of 13,955 square feet gross — a deduction of 87% — and relief was required because the remainder fell below the minimum. Here the deduction was 18% and left 49,484 square feet. The applicant in that case stated in its written narrative that “[t]he intent of the steep slope section of the ordinance is to prevent creating lots that cannot be built on.”

V. THE RECORD

53. The Movants incorporate by reference the complete case file in ZBA2026-063, including the application, the Zoning Review, the By-Right Subdivision Plan, the applicant’s memorandum of May 20, 2026, and the City’s audio and video recording of the public hearing of September 10, 2026. Quotations above are drawn from that recording. The Movants have requested the recording and the written decision under RSA 91-A and reserve the right to supplement this motion upon their production.

VI. RELIEF REQUESTED

WHEREFORE, the Movants respectfully request that this Board:

- A. Grant a rehearing of its decision of September 10, 2026 in Case No. ZBA2026-063;
- B. Upon rehearing, require the applicant to carry its burden on each of the five criteria of RSA 674:33, I(a)(2), and in particular to produce competent evidence on the effect of the proposal upon surrounding property values;
- C. Require that any finding of unnecessary hardship identify the special condition of the property relied upon, and reconcile that finding with the applicant’s own By-Right Subdivision Plan;
- D. Address §8.1.2 of the Land Use Code upon evidence, and state the basis for relief exceeding the lot area that section requires;
- E. State, upon the record, the evidentiary basis for each finding of fact adopted in support of any grant, and in particular for any finding that surrounding property values will not be diminished; and
- F. Consider whether a member who supplied the only evidence upon a contested criterion, recited it as a finding, and moved the relief, should participate in the reconsideration of that finding; and
- G. Grant such further relief as is just.

Respectfully submitted,

Nickolas J. Levasseur

30 Mystic Street, Manchester, NH 03103

Alison Famisan-Levasseur

30 Mystic Street, Manchester, NH 03103

Dated: [REDACTED], 2026

CERTIFICATE OF SERVICE

I certify that on [REDACTED], 2026 a copy of the foregoing was delivered to the Manchester Planning and Community Development Department, One City Hall Plaza, Manchester, New Hampshire 03101, and served upon the applicant T & L 2018, LLC and its agent The Dubay Group, Inc., 136 Harvey Road, Building B101, Londonderry, New Hampshire 03053, by [first class mail / hand delivery].

Nickolas J. Levasseur